

LEGAL · COMMERCIAL AGREEMENT

Master Services Agreement

This Master Services Agreement (the "**Agreement**") is entered into as of 12 March 2026 (the "**Effective Date**") by and between the parties identified below.

Supplier	Northwind Systems Private Limited, CIN U72900KA2016PTC094411, registered at 4th Floor, Ellipse Block, Outer Ring Road, Bengaluru 560103, India (" Supplier ")
Customer	Halcyon Retail Group PLC, company no. 07734112, registered at 18 Fenchurch Avenue, London EC3M 5BA, United Kingdom (" Customer ")
Initial Term	36 months from the Effective Date (see Section 11.1)
Governing law	England and Wales (see Section 14.1)
Annual contract value	GBP 1,480,000 exclusive of Taxes (Schedule 2)

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1. Definitions and Interpretation

1.1 In this Agreement, the following capitalised terms have the meanings set out below. Terms defined in Section 10.1 apply only to Section 10 and Schedule 4.

"Affiliate"

any entity that directly or indirectly controls, is controlled by, or is under common control with a party, where "control" means holding more than 50% of the voting rights.

"Available"

in respect of the Platform, responding to a valid health-check request within 2,000 ms, measured as set out in Schedule 3, paragraph 2.3, and excluding Permitted Downtime.

"Deliverable"

any item identified as a deliverable in a Statement of Work, including the Foreground IP created in producing it (see Section 8.2).

"Permitted Downtime"

Planned Maintenance notified in accordance with Section 3.5(b), plus any period of unavailability attributable to a Customer Dependency as defined in Section 4.3.

"Service Credit"

the credit calculated under Section 5.3 and Schedule 3, Table 3.2, being the Customer's sole financial remedy for a Service Level failure except as provided in Section 5.6.

"Statement of Work" / "SOW"

a document executed under Section 2.2 describing specific Services, and incorporating this Agreement by reference.

"Taxes"

value added tax, goods and services tax, withholding tax and any similar levy, excluding taxes on Supplier's net income.

1.2 Interpretation. (a) Section headings are for convenience only and do not affect construction. (b) "including" means "including without limitation". (c) A reference to a Section is to a Section of this Agreement; a reference to a paragraph is to a paragraph of the Schedule in which it appears. (d) Where a Schedule conflicts with the body of this Agreement, Section 2.3 governs.

2. Structure of the Agreement

2.1 This Agreement sets out the framework terms on which Supplier will provide services to Customer. It does not itself oblige Customer to purchase, or Supplier to provide, any services absent an executed SOW.

2.2 Each SOW must be signed by an authorised signatory of both parties and must state, at minimum: (a) the Services and any Deliverables; (b) the charging model, selected from those in Schedule 2; (c) the SOW term; and (d) any Customer Dependencies (Section 4.3). A SOW that omits (b) is charged on a time-and-materials basis at the rate card in Schedule 2, Table 2.1.

2.3 Order of precedence. In the event of conflict, the documents take precedence in the following order, highest first:

Rank	Document	Prevails over	Exception
1	Executed Change Order	All lower-ranked	Cannot vary Sections 9, 10 or 13
2	Statement of Work	Ranks 3–5	Only where it expressly cites the varied Section
3	Body of this Agreement	Ranks 4–5	—
4	Schedules 1–4	Rank 5	Schedule 3 prevails on SLA measurement
5	Customer purchase order	—	Terms on a PO have no effect (Section 15.4)

Table 2.1 — Order of precedence.

3. Provision of Services

3.1 Supplier shall provide the Services with reasonable skill and care, in accordance with Good Industry Practice and the specifications in Schedule 1.

3.2 Personnel. Supplier may substitute personnel provided the replacement has equivalent or greater competence. Where a named Key Person listed in a SOW is substituted without Customer's prior written consent, Section 5.6 (Chronic Failure) does not apply but Customer may require reinstatement of an equivalent Key Person within 20 Business Days.

3.3 Subcontracting. Supplier may subcontract performance to an Affiliate without consent, and to a third party only with Customer's prior written consent, which shall not be unreasonably withheld. Supplier remains liable for its subcontractors' acts and omissions as if they were its own. Subcontracting that involves processing of Customer Personal Data is additionally subject to Section 10.4 and Schedule 4.

3.4 Acceptance. Customer shall have 10 Business Days from delivery of a Deliverable to test it against the acceptance criteria in the relevant SOW and to issue either an acceptance notice or a written statement of non-conformities. Absent either, the Deliverable is deemed accepted on the 11th Business Day. Supplier shall remedy notified non-conformities within 15 Business Days, after which the cycle in this Section 3.4 repeats once; a second failure entitles Customer to terminate the SOW under Section 11.4(b).

3.5 Maintenance. (a) Emergency maintenance may be performed at any time with such notice as is reasonably practicable. (b) Planned Maintenance shall be notified at least 5 Business Days in advance, shall not exceed 8 hours in any calendar month, and shall fall within the maintenance window in Schedule 3, paragraph 4.1. Maintenance notified under (b) constitutes Permitted Downtime; maintenance under (a) does not, unless caused by a Customer Dependency.

4. Customer Obligations

4.1 Customer shall provide timely access to its systems, premises, data and personnel to the extent reasonably required for Supplier to perform the Services.

4.2 Customer is responsible for the accuracy and legality of Customer Data supplied to Supplier and warrants that it has all rights necessary for Supplier to process it as contemplated by this Agreement.

4.3 Customer Dependencies. Where Supplier's performance depends on an act or omission of Customer identified as a dependency in a SOW (a "**Customer Dependency**"), and Customer fails to meet it, then: (a) relevant Service Levels are suspended for the duration of the failure; (b) affected timelines extend day-for-day; and (c) Supplier may recover reasonable documented costs of standing time at 60% of the applicable rate in Schedule 2, Table 2.1.

DRAFTING NOTE — NOT PART OF THE EXECUTED TEXT

Customer's counsel proposed capping standing-time recovery under 4.3(c) at GBP 25,000 per SOW. Position not yet agreed; resolve before signature and delete this note.

5. Service Levels and Service Credits

5.1 Supplier shall meet the Service Levels set out below, measured monthly in arrears in accordance with Schedule 3.

Ref	Service Level	Target	Measurement	Credit at breach
SL-01	Platform availability	99.90%	Calendar month, per Sch. 3 ¶2.3	See Table 5.2
SL-02	P1 incident response	15 minutes	95th percentile	2% of Monthly Charges
SL-03	P1 incident resolution	4 hours	90th percentile	3% of Monthly Charges
SL-04	P2 incident resolution	2 Business Days	90th percentile	1% of Monthly Charges
SL-05	Batch settlement accuracy	99.99%	Records processed / month	4% of Monthly Charges
SL-06	Monthly report delivery	By 5th Business Day	Per occurrence	GBP 2,000 fixed

Table 5.1 — Service Levels. "Monthly Charges" means the recurring charges invoiced for the month in which the failure occurred, excluding pass-through costs.

5.2 Availability credit bands. Credits for SL-01 accrue on the following sliding scale and are not cumulative across bands:

Measured availability	Approx. monthly downtime	Service Credit	Escalation
≥ 99.90%	≤ 43 min	None	—
99.50% – 99.89%	44 min – 3h 39m	5% of Monthly Charges	Service Manager
99.00% – 99.49%	3h 40m – 7h 18m	10% of Monthly Charges	Account Director
98.00% – 98.99%	7h 19m – 14h 36m	15% of Monthly Charges	Governance Board
< 98.00%	> 14h 36m	20% of Monthly Charges	Chronic Failure — Section 5.6

Table 5.2 — Availability credit bands. Downtime figures are illustrative for a 30-day month.

5.3 Claiming credits. Customer must claim a Service Credit within 30 days of receipt of the report for the relevant month, failing which the claim is waived. Credits are applied against the next invoice and, on expiry or termination, paid as a cash refund within 30 days.

5.4 Aggregate cap. Total Service Credits in any calendar month shall not exceed 20% of that month's Monthly Charges, and in any rolling 12-month period shall not exceed 10% of the Charges paid in that period.

5.5 Service Credits are a price adjustment reflecting reduced value received and are not a penalty, nor are they liquidated damages for the purposes of Section 13.

5.6 Chronic Failure. A "Chronic Failure" occurs where (a) SL-01 falls below 98.00% in any month; (b) the same Service Level is missed in three consecutive months; or (c) any four Service Levels are missed in a single month. On a Chronic Failure, Customer may, in addition to Service Credits, require a remediation plan within 10 Business Days and, if the failure persists for a further 60 days, terminate the affected SOW for material breach under Section 11.4(a) without the cure period otherwise afforded by that Section.

6. Change Control

6.1 No variation to the Services, Charges or a SOW is effective unless documented in a Change Order signed by both parties. The procedure is:

1. Either party issues a change request describing the required change.
2. Supplier responds within 10 Business Days with an impact assessment covering scope, Charges, timeline and risk. Assessments requiring more than 8 hours of effort are chargeable at the Schedule 2 rate card, notified in advance.
3. The parties' authorised representatives either sign the Change Order or record the change as rejected.
4. Rejected change requests may be escalated to the Governance Board under Section 14.2 but do not suspend performance of the unchanged Services.

6.2 Supplier may make changes to the Platform that do not materially reduce functionality or Service Levels without a Change Order, on 30 days' notice. Changes that alter the sub-processor list require notice under Section 10.4(b) instead.

7. Charges, Invoicing and Payment

7.1 Customer shall pay the Charges set out in Schedule 2. Recurring charges are invoiced monthly in advance; usage and time-and-materials charges monthly in arrears.

7.2 Payment terms. Undisputed invoices are payable within 30 days of receipt of a valid invoice, by electronic transfer to the account nominated in Schedule 2, paragraph 5.

Event	Consequence	Reference
Invoice unpaid, day 31	Interest at 3% above Bank of England base rate, accruing daily	7.3
Invoice unpaid, day 45	Written reminder; Governance Board notified	7.3
Invoice unpaid, day 60	Supplier may suspend affected Services on 10 Business Days' notice	11.3
Invoice unpaid, day 90	Material breach; termination right arises	11.4(c)

Table 7.1 — Late payment escalation. Amounts disputed in good faith under Section 7.4 are excluded from this table.

7.4 Disputed amounts. Customer may withhold a disputed amount provided it (a) pays the undisputed balance when due, (b) notifies the dispute with reasons within 15 days of the invoice date, and (c) does not withhold more than the genuinely disputed sum. Disputes are resolved under Section 14.2.

7.5 Indexation. From the first anniversary of the Effective Date, Supplier may increase recurring Charges once per contract year by the lesser of (a) the increase in the UK Consumer Prices Index over the preceding 12 months, or (b) 4%, on 60 days' written notice.

7.6 Taxes. Charges exclude Taxes, which Customer shall pay in addition. Where Customer is required to withhold tax, it shall gross up the payment so that Supplier receives the amount it would have received absent the withholding.

8. Intellectual Property

8.1 Background IP. Each party retains all rights in intellectual property owned by it before the Effective Date or created independently of this Agreement.

8.2 Foreground IP. Subject to payment in full of the Charges attributable to the relevant Deliverable, Supplier assigns to Customer all rights in Deliverables created specifically for Customer under a SOW, excluding Supplier Tools.

8.3 Supplier Tools. "Supplier Tools" means libraries, frameworks, know-how and generic components used by Supplier across customers. Supplier grants Customer a perpetual, non-exclusive, worldwide, royalty-free licence to use Supplier Tools solely to the extent embedded in a Deliverable and solely for Customer's internal business purposes. This licence survives termination (Section 11.6).

8.4 Open source. Supplier shall not incorporate into a Deliverable any component licensed under a copyleft licence that would require disclosure of Customer's source code, without Customer's prior written consent. A component inventory is provided with each Deliverable under Schedule 1, paragraph 6.

9. Confidentiality

9.1 Each party shall keep the other's Confidential Information confidential, use it only to perform this Agreement, and disclose it only to those of its personnel, Affiliates and professional advisers who need to know it and who are bound by equivalent obligations.

9.2 Exclusions. The obligations in Section 9.1 do not apply to information that is or becomes public through no breach of this Agreement, was lawfully known to the recipient without restriction, is independently developed, or is required to be disclosed by law, regulation or a court of competent jurisdiction — in which case the recipient shall, where lawful, give prior notice.

9.3 Duration. These obligations continue for five years after termination or expiry, except in respect of trade secrets and Customer Personal Data, for which they continue indefinitely.

10. Data Protection and Security

10.1 In this Section, "controller", "processor", "data subject", "personal data" and "processing" have the meanings given in the UK GDPR. Customer is the controller and Supplier the processor of Customer Personal Data.

10.2 Supplier shall process Customer Personal Data only on Customer's documented instructions, as set out in Schedule 4, paragraph 1 (subject matter, duration, nature, purpose, categories of data and data subjects).

10.3 Security. Supplier shall maintain the technical and organisational measures described in Schedule 4, paragraph 3, and shall maintain ISO/IEC 27001 certification throughout the Term. Any material reduction in those measures requires a Change Order under Section 6.1.

10.4 Sub-processors. (a) Customer authorises the sub-processors listed in Schedule 4, paragraph 4. (b) Supplier shall give 30 days' notice before appointing a new sub-processor; Customer may object on reasonable data-protection grounds within 15 days, in which case the parties shall follow Section 14.2. (c) Supplier shall impose data-protection obligations on each sub-processor no less protective than those in this Section 10.

10.5 Breach notification. Supplier shall notify Customer without undue delay, and in any event within 24 hours, of becoming aware of a personal data breach affecting Customer Personal Data, and shall provide the information required by Article 33(3) UK GDPR so far as available.

10.6 Transfers. Transfers of Customer Personal Data outside the United Kingdom are made under the UK International Data Transfer Addendum, executed as Schedule 4, Annex A. Supplier's Bengaluru delivery centre processes Customer Personal Data in reliance on that Addendum.

11. Term, Suspension and Termination

11.1 Term. This Agreement begins on the Effective Date and continues for 36 months (the "Initial Term"), renewing automatically for successive 12-month periods unless either party gives at least 90 days' written notice before the end of the then-current term.

11.2 A SOW continues for the term stated in it, notwithstanding expiry of this Agreement; the terms of this Agreement continue to apply to that SOW until it expires or is terminated.

11.3 Suspension. Supplier may suspend Services where required by law, where necessary to prevent a security incident, or as permitted by Table 7.1. Suspension does not relieve Customer of payment obligations for Services actually provided.

11.4 Termination for cause. Either party may terminate this Agreement or any SOW immediately on written notice if the other: (a) commits a material breach and fails to remedy it within 30 days of written notice specifying the breach; (b) commits a second acceptance failure as described in Section 3.4; (c) fails to pay an undisputed invoice for 90 days; or (d) becomes insolvent, enters administration or has a receiver appointed.

11.5 Termination for convenience. Customer may terminate any SOW on 60 days' written notice, subject to payment of Services performed to the termination date plus non-cancellable committed costs reasonably incurred, evidenced on request.

11.6 Survival. Sections 1, 8.3, 9, 10 (in respect of data retained), 12.4, 13, 14 and 15 survive termination or expiry, together with any provision expressly stated to survive.

11.7 Exit assistance. For up to 90 days after termination, Supplier shall provide reasonable exit assistance at the rate card in Schedule 2, Table 2.1, including return or secure deletion of Customer Data at Customer's election, certified in writing within 30 days of completion.

12. Warranties and Indemnities

12.1 Each party warrants that it has the authority to enter into this Agreement and that doing so does not breach any other obligation binding on it.

12.2 Supplier warrants that the Services will conform in all material respects to Schedule 1 for 90 days following performance. Customer's exclusive remedy for breach of this warranty is re-performance or, if re-performance is not commercially reasonable, refund of the Charges paid for the non-conforming Services.

12.3 Except as expressly set out in this Agreement, all warranties, conditions and terms implied by statute or common law are excluded to the fullest extent permitted by law.

12.4 IP indemnity. Supplier shall indemnify Customer against damages awarded and reasonable legal costs arising from a third-party claim that a Deliverable infringes that third party's intellectual property rights, provided Customer (a) notifies Supplier promptly, (b) gives Supplier sole control of the defence and settlement, and (c) provides reasonable assistance at Supplier's cost. This indemnity does not apply to claims arising from Customer Data, Customer's modification of a Deliverable, or use in combination with items not supplied by Supplier. Liability under this Section 12.4 is subject to the cap in Section 13.3(b).

13. Limitation of Liability

13.1 Unlimited liability. Nothing in this Agreement limits liability for death or personal injury caused by negligence, fraud or fraudulent misrepresentation, or any liability that cannot lawfully be limited.

13.2 Excluded loss. Subject to Section 13.1, neither party is liable for loss of profit, revenue, anticipated savings, goodwill or business opportunity, or for indirect or consequential loss, whether or not foreseeable. Customer's liability to pay the Charges is not excluded loss.

13.3 Caps. Subject to Sections 13.1 and 13.2, each party's total aggregate liability is capped as follows:

Head of liability	Cap	Measured over
(a) General — all other claims	125% of Charges paid and payable	12 months preceding the claim
(b) IP indemnity (Section 12.4)	GBP 3,000,000	Aggregate, whole Term
(c) Data protection breach (Section 10)	GBP 5,000,000	Aggregate, whole Term
(d) Breach of confidentiality (Section 9)	200% of Charges paid and payable	12 months preceding the claim

Table 13.1 — Liability caps. The caps in rows (b), (c) and (d) are not cumulative with row (a) in respect of the same loss.

13.4 Service Credits paid under Section 5 are set off against any award of damages for the same Service Level failure.

14. Governing Law and Dispute Resolution

14.1 This Agreement and any dispute arising out of it are governed by the laws of England and Wales. Subject to Section 14.2, the courts of England and Wales have exclusive jurisdiction.

14.2 Escalation. Before commencing proceedings (other than for injunctive relief or recovery of undisputed debt), the parties shall escalate the dispute as follows:

Stage	Participants	Time to resolve
1 — Service Managers	Named in each SOW	10 Business Days
2 — Governance Board	Account Director + Customer sponsor	20 Business Days
3 — Executive	CEO or direct report of each party	20 Business Days
4 — Mediation	CEDR-appointed mediator, London	40 Business Days

Table 14.1 — Dispute escalation. Time periods run consecutively from written notice of the dispute.

15. General Provisions

15.1 Assignment. Neither party may assign or novate this Agreement without the other's written consent, except to an Affiliate or in connection with a sale of substantially all of its business, on notice.

15.2 Force majeure. Neither party is liable for failure to perform caused by an event beyond its reasonable control, provided it notifies the other promptly and mitigates. If the event continues for 60 days, either party may terminate the affected SOW without liability. Inability to pay is never force majeure.

15.3 Notices. Notices must be in writing and sent to the addresses on page 1, marked for the attention of the General Counsel, by hand, recorded post or email with confirmation of receipt. Notices under Sections 10.5 and 11.4 must additionally be sent by email.

15.4 Entire agreement. This Agreement, its Schedules and each SOW constitute the entire agreement between the parties and supersede all prior discussions, proposals and purchase order terms. Neither party has relied on any statement not set out in this Agreement.

15.5 Severability. If a provision is held invalid, it shall be modified to the minimum extent necessary to make it enforceable, and the remainder of this Agreement continues in effect.

15.6 No partnership. Nothing in this Agreement creates a partnership, joint venture or relationship of employment between the parties.

15.7 Counterparts. This Agreement may be executed in counterparts, including by electronic signature, each of which is an original and which together constitute one instrument.

EXECUTED BY THE PARTIES

**For and on behalf of
Northwind Systems Private Limited**

**For and on behalf of
Halcyon Retail Group PLC**

Signature

Name: S. Venkataraman
Title: Chief Revenue Officer
Date: _____

Signature

Name: E. Thorne
Title: Group Chief Operating Officer
Date: _____